

1 Code: 1670
2 Name: Donovan Clark
3 Address: 6550 Pyramid Way # 37
4 Sparks, NV 89436
5 Telephone: 775-240-0464
6 Email: _____
7 Self-Represented Litigant

8 IN THE FAMILY DIVISION
9 OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
10 IN AND FOR THE COUNTY OF WASHOE

11 Megan McCafferty
12 Applicant,

13 vs.

14 Donovan Clark
15 Adverse Party.

Case No. TPO16-01555

Dept. No. DM 3

16 EX PARTE MOTION AND AFFIDAVIT

17 The above-named Applicant/Adverse Party, hereby moves the Court to grant the following relief:

18 _____ Extension of Order for Protection

19 _____ Modification of Order for Protection

20 X _____ Dissolve the Order for Protection

21 _____ Order to Show Cause

22 _____ Other: _____

23 This motion is made for the following reasons:

24
25
26 The PTO put in place was requested
27 for no other purpose than to
28 punish me and prevent me from

1 having contact with my child. I
2 can show some of the claims
3 made against me she in fact
4 did them herself so she could
5 blame. There are also two
6 other court cases so far where
7 she has tried to use courts in
8 a similar fashion. One of them
9 she failed each ^{time} making up new
10 charges. ONE of them she may
11 have won and some may have
12 BEEN punished for no reason. I
13 now read for my children because
14 I have found the only thing
15 she told me the truth on was her
16 name, her age, where she was from,
17 her family I have discovered as lies.
18 If more room is needed, attach additional sheets. (see Attached)

19 This document does not contain the Social Security Number of any Person.

20 I declare, under penalty of perjury under the law of the State of Nevada, that the
21 foregoing is true and correct.

22 Dated: 10/10/16

23 (Signature)

24 (Printed Name)

List of False Claims in the PTO

1. Threatening to harm them.
 - I never have raised a hand to any of them Megan has on 3 occasions struck me the last time I informed her if she did it again I would leave and never come back.
2. Della Baker and Donovan trapped her and the kids in the bathroom
 - She closed herself in the bathroom when I told her there was no need for it because my mom and her don't get along that mom wasn't going to bother her she was just helping me get my stuff out as well as that the kids would like to see grandma she said she was giving the kids a bath.
3. Trying to force my way into bathroom.
 - I asked her to let the kids out so I could give them a hug before I left. I begged but I never touched the door and my mom was standing there she feared the lies Megan has always told but she never touched the door and we have a lot of it recorded.
4. Trying to remove them from our home.
 - I told her she could have the house and I spoke with my landlord on Saturday Oct 8th 2016 about what I had to do to get it switched to her name.
5. Threats of suicide
 - She doesn't have any means to take care of my children and I live for them. I wouldn't hurt myself because I wouldn't be able to take care of them.
6. Body Shamming
 - Can't prove I don't but there is no need to be rude. I have since I meet her and let her and her daughter move in done my best to care and provide for them.
7. Withholding of phone use and money.
 - I turned her phone off on Oct 3rd because she was buying random items and pushing the data so high I wouldn't be able to afford it. She still has my credit card both debit cards one was hers the other is mine for our USAA account and it was by slim chance I had my Bank of America she normally has all the money I very rarely had any of them because she would pick fights if I paid the bills. USAA has always had both our names on it. She also gets her own money from child support which she told me the FBI were investigating an employee of the child support office in Wyoming so they had her account and she couldn't access it for the last year. Though I found out its active and she has just been lying that was what started the fight Friday. There was no reason to lie about it that was Eva's I never asked for didn't want it why for a year hide things like this.
8. Destruction of Property.
 - I have photos as well video to show I was in the process of cleaning and fixing the house. She came home so left so there wasn't a fight. When I returned the house was empty and destroyed she then told the police I did it. If the time of PTO being received is recorded it will show also she knew about it prior to it happening.

9. Will not allow her to get a license.
 - I paid 160 dollars to vital statics to have it rush ordered in Feb of 2014 the money was pulled from my account but we only Eva's that I know of. Vital statics when I called them said Megan had cancelled the order on hers when I asked them why it hadn't arrived. Megan denies cancelling it.
 10. Passing out on the kitchen floor.
 - I sleep on the floor most nights due to she wanted a loft bed I have not woken up on the kitchen floor but yes on my bedroom and living room floor. This is because that is where I went to bed. I have fallen asleep at my computer due to working long hours.
 11. Left my job for drug testing.
 - Megan has told me to leave my job for 2 years now because of the hours and stress. 12-16 hour days 6 days a week I had almost two months paid vacation I was never able to use she said was destroying the family the first vacation I took in 3 years I got called each day to work. On the 4th day she threatened to take the kids and leave me if I chose work over them again. So I stayed home figuring I had the vacation time and saving to get a new job. Right afterwards this began it seems she wanted me to leave to give me a lower chance at keeping my kids. I loved my job and now regret what I did but my family did and does come first. This wasn't the first threat of leaving me over my job just enough was enough.
 12. Backing her into corners.
 - I only did this when she hit me. She slapped me on two different occasions and smashed my foot with a hair brush. I have never raised a hand to any woman ever. I am fully against believing a man shouldn't hit a lady for any reason.
 13. Won't let her leave the house.
 - Until week before this I was gone at work always I rarely even got to see the kids. She came and went all day and was actually rarely at the house. I have no clue doing what for the last two months she claimed to be working.
 14. Claims I say her body grosses her out and other rude comments.
 - No point in random insults it's just rude. I did tell her I thought our relationship might be a mistake and it seems it was.
 15. Brought them here with no family but my own to isolate her.
 - She told me she wanted to move from Riverton because of her X-Husband which she claims beat and tortured her. I am now finding out she may never have been married. She also had a court case going in Wyoming I knew nothing about until 10/7/16
 - Megan D Mccafferty V Preis Enterprise
- Case Number 12-8039
- Preis won in the end but Megan tried different charges over and over until courts said no more. I never knew this was going on right under my nose but right when this case started to go public she wanted to move claiming it was her supposed x husband.

16. Forcing her to be a stay at home mom.

- Our biggest well what would upset me was she didn't help with the house or bills or anything. I had asked many times if she didn't want to take care of the house or wanted me to help more on it then I needed her help with bills. I would have loved some sort of help.

17. Punched the dryer and car when asked to leave.

- I did hit the car I got into an argument with our neighbor who tried to pick a fist fight with me over religion. I refused to and was insulted but knowing if I got in a fight and ended up in jail no one would be there to take care of my kids in frustration I hit the car and still regret it because all it did was cost me in the end. The dryer was likely trying to move stuff back and forth or she put it there I don't know.

18. 9/30 came home high threatening to take the kids.

- I have never threatened to take the kids. I had a few drinks she told me to leave I did I was not intoxicated wanted to work out bills so I might be able to look for a new home. She wouldn't so then I went down town then I did drink but never left down town or even bother the for the rest of the night. I have all messages I sent her for this whole time period.

19. Grabbed her arm and punched her in the stomach and shoved her in the bathroom.

- Once again she is changing the bathroom story if this happened as her statement I did this in front my mom, Byron Machettio, and Sunia Baker everyone is willing to tell what they saw. If this was true and she had asked me to leave so many times why wouldn't she have an extension hearing scheduled. Never have the cops until now had to report to our home or anything. CPS came due to an anonymous call they told Megan she needed to fix herself get back on meds for bio polar as well as take care of the house if she wanted to be a stay at home mom. None of this has ever been brought until I tell her I am leaving for good.

20. Threatening to call CPS.

- I did call CPS I thought she had her green card to smoke legal pot until she told the cops it was mine. She is being treated for Bio Polar, and post-traumatic stress disorder. When she informed the cops it was mine it all dawned on me because she was off all her other medication the doctor had prescribed. This is a very big concern of mine now.

21. Threatening Phone Calls

- I saved and have all my texts I have sent to her as well as I will work on getting what I can from ATT all I asked was to work out the bills and wanted to know when I could visit my kids.